

IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(CRIMINAL APPELLATE JURISDICTION)

**Present:**

Mr. Justice Md. Kamrul Hosssain Mollah

**Criminal Appeal No.14081 of 2019**

Most. Laily Begum

.....convict-Appellant

-Versus-

The State and another

..... opposite-parties

Mrs. Marjina Raihan (Modina), Advocate

.....For the convict-Appellant.

Mrs. Aleya Khandker, A.A.G and

Mrs. Umme Masumun Nesa, A.A.G

.....For the State

**Heard on:**

**Judgment on:**

**Md. Kamrul Hossain Mollah.J:**

This appeal has been preferred against the judgment and order of conviction and sentence dated 16.07.2019 passed by the learned Sessions Judge, Natore in Sessions Case No.270 of 2018 arising out of C.R. Case No.307C of 2017 (Lalpur), convicting the appellant-petitioner under section 138 of the Negotiable Instruments Act, 1881 and sentencing him to suffer simple imprisonment for a period of 01(one) year and also to pay a fine of Tk.2,64,600/-(two lac sixty four thousand six hundred) taka.

The respondent No.1 as complainant filed a complainant petition case under section 138 of the Negotiable Instrument Act, 1881.

The prosecution case, in short, is that, the convict-appellant took total loan Tk. 2,64,600/- (two lac sixty four thousand six hundred) taka from the complainant for purpose of business and thereafter against the said money the convict appellant issued a cheque No.1161-1624426 on 03.10.2017 in favour of the complainant of Agroni Bank, Gupalpur Branch, Natore and then the complainant placed the cheque in the same, Natore for encashment which dishonored as being “insufficient fund” on 09.10.2017. Thereafter, the complainant served a legal notice on 12.10.2017 through Registry Post by the lawyer and the convict appellant received the said legal notice on 16.10.2017 and also did not pay any money of the said cheque to the complainant and hence this case.

The learned Magistrate examined the complainant-respondent No.1 under section 200 of the Code of Criminal Procedure and took cognizance against the convict-appellant under section 138 of the Negotiable Instruments Act, 1881 and issued summons against him.

On 16.01.2018, the convict-appellant voluntarily surrendered before the learned concerned Court with a prayer for bail and after hearing, the convict-appellant was enlarged on bail of the instant case. When the case become ready for final hearing then the instant case was transferred to the learned Sessions Judge, Natore for trial who framed charge on

04.04.2018 under section 138 of the Negotiable Instruments Act, 1881 against the convict-appellant where he pleaded not guilty and claimed to be tried.

The prosecution examined as many as 01(one) witness to prove the case, on the other hand, the accused examined none.

After completion of trial, the learned Sessions Judge, Natore convicted the appellant under section 138 of the Negotiable Instruments Act, 1881 and sentencing him to suffer simple imprisonment for a period of 01 (one) year and also to pay a fine of Tk. 2,64,600/-(two lacs sixty four thousand six hundred) vide his judgment and order of conviction and sentence dated 16.07.2019.

Being aggrieved by and dissatisfied with the impugned judgment and order of conviction and sentence dated 16.07.2019 the convict-appellant preferred this Appeal before this Court by depositing the 50% of cheque amount on 09.10.2019.

Mrs. Marjina Raihan (Modina), the learned Advocate for the convict-appellant submits that the convict-appellant has preferred an appeal under section 410 of the Code of Criminal Procedure before this Court against the impugned judgment and order of conviction and sentence dated 16.07.2019 passed by the learned Sessions Judge, Natore in Sessions Case No.270 of 2018 arising out of C.R. Case No.307C of 2017 (Lalpur), convicting the appellant under section 138 of the Negotiable Instruments Act, 1881 and sentencing him to suffer simple imprisonment for a period of 01 (one) year with a fine of

Tk.2,64,600/-. Before filing this appeal, the convict-appellant deposited an amount of Tk. 1,32,300/- i.e. 50% of the cheque amount on 09.10.2019 through chalan and during pendency of the appeal, the convict-appellant has paid rest of the cheque amount to the complainant-respondent No.1.

The learned Advocate lastly submits that during pendency of the appeal, the convict-appellant and complainant-respondent No.1 mutually discussed to settle the dispute out of Court. The complainant-respondent No.1 will have no objection if the instant Appeal is allowed.

None appears on behalf of the complainant-respondent No.1 at the time of hearing of this appeal

On the other hand, Mrs. Aleya Khandker, the learned Assistant Attorney General appearing on behalf of the State by supporting the submission of the learned Advocate for the convict-appellant submits that during pendency of the appeal the convict-appellant and complainant-respondent No.1 mutually discussed to settle the dispute out of Court. The complainant-respondent No.1 will have no objection if the instant Appeal is allowed.

I heard the submissions of the learned Advocates of both the parties and perused the materials on record.

It appears from the submissions of the learned Advocates of both the parties that during pendency of the appeal the convict-appellant and complainant-respondent No.1 mutually discussed to settle the dispute out of Court and before filing this

appeal, the convict-appellant deposited an amount of Tk. 1,32,300/- i.e. 50% of the cheque amount on 09.10.2019 through chalan and during pendency of the appeal, the convict-appellant has paid rest of the cheque amount to the complainant-respondent No.1. It also appears that the the complainant-respondent No.1 will have no objection if the instant Appeal is allowed.

Accordingly, I find cogent and legal ground to interfere with the impugned judgment and order of conviction and sentence dated 16.07.2019. The appeal, therefore, has merit.

In the result, the Criminal Appeal No.14081 of 2019 is allowed. The judgment and order of conviction and sentence dated 16.07.2019 passed by the learned Sessions Judge, Natore in Sessions Case No.270 of 2018 is modified in part where the trial Court fined Tk.2,64,600/-. The convict-appellant deposited Tk.1,32,300/- at the time of filing appeal and during pendency of the appeal, he paid the rest of the cheque amount in cash to the complainant-respondent No.1 which is the claim of complainant-respondent No.1 and the conviction of the convict-appellant is hereby set-aside and the convict-appellant will be acquitted.

The concerned lower Court is hereby directed to take necessary steps to give the deposited Tk.1,32,300/- (one lac thirty two thousand and three hundred) to the complainant-respondent No.1 (if he did not take the said amount).

The order of bail granted earlier by this Court is hereby recalled and vacated.

Send down the lower Court records and communicate a copy of the judgment and order to the concerned Court below at once.

*Md. Mustafizur Rahman*  
*Bench Officer*